

Court No. - 3

Case :- WRIT - C No. - 19542 of 2017

Petitioner :- Iqbal Ahmad

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Vidya Prakash Singh

Counsel for Respondent :- C.S.C.,Awadhesh Kumar Saxena

Hon'ble Krishna Murari,J.

Hon'ble Ravindra Nath Kakkar,J.

Heard Sri Vidya Prakash Singh, learned counsel for the petitioner and Sri Awadhesh Kumar Saxenan, who has accepted notice on behalf of respondent nos. 3 and 4.

Petitioner is the sole proprietor of M/s Sabri Ice Factory situate in Muzaffarnagar and is a consumer of the Pashchimanchal Vidyut Vitran Nigam Limited. There was an accidental leakage of Ammonia Gas from the chilling centre and fire broke out which was doused by the fire brigade but for the said reason the machines of the factory were substantially damaged resulting into closure of the same.

On account of the closure of the business, petitioner could not pay the charges for consumption of electricity energy which resulted in having an arrears and bill-cum-demand notice dated 1.3.2017 for a sum of Rs.53,37,888.22 was issued. Petitioner challenged the same by filing Writ Petition No.12944 of 2017 which was disposed of by giving liberty to the petitioner to invoke the provisions of Clause 6.14 of the Electricity Supply Code. The said provision reads as under:

6.14 Installment Facility

(i) The Licensee may extend the facility of installments to those consumers only who are in financial distress. However, no waiver of surcharge shall be allowed.

3(4) [(ii) No officer below the rank of Executive Engineer shall grant installments. The Executive Engineer, / DGM / and General Manager can grant up to maximum of two, three or four monthly installments respectively. However first installment shall not be less than 40% of the total amount. Where the amount for installments exceeds Rs.10, 000/= (Ten Thousand), the consumer shall be asked to deposit post dated cheques of the installments to the Licensee.]

It is submitted that in pursuance of the aforesaid order, petitioner made an application dated 28.3.2017 to the Chairman/Managing Director of U.P. Power Corporation. The

said application is alleged to have been sent through registered post.

Admittedly, petitioner is a consumer of Pashchimanchal Vidyut Vitran Nigam Limited, which is a separate company. Under the provisions of Clause 6.14 the power to extend the facility of instalment can be exercisable by an officer not below the rank of Executive Engineer.

Since the petitioner himself did not approach the appropriate authority, no blame can be put on respondents in not considering the submission of the petitioner.

Considering the facts and circumstances, we dispose of the writ petition by giving one more opportunity to the petitioner to file an application along with certified copy of this order before the respondent no. 4 within three weeks, with the direction to the authority to decide the same in accordance with the provisions of Clause 6.14 by a reasoned and speaking order within two months from the date of making of an application.

Order Date :- 5.5.2017

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